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16 TENTATIVE RULING 9:15 a.m., Friday, July 31, 2026

MONTAUK

RB LLC v. ALICIA NICOLE COULTER [26STCV19895]

SPECIAL MOTION

TO STRIKE THE COMPLAINT PURSUANT TO CCP SECTION 425.16 byF DEFENDANT ALICIA
NICOLE COULTER

TIMELINE:

Complaint alleges defamation per se and false light

6/13/2026: Defendant Alicia Nicole Coulter

("Defendant") and a group of other Black women patronize a restaurant, Montauk, located in Redondo Beach. (Coulter Decl., ¶ 3.) Defendant is an author in the business of educating Black women to navigate environmental challenges. (Id. ¶ 2.) Defendant has trademarked the term "Safe Spaces for Black Women" and hosts a website dedicated to a group/movement by the same name. (Ibid.) Plaintiff Montauk RB LLC ("Plaintiff" or "Montauk") is the owner/operator of the Montauk restaurant. (Compl., ¶ 5.) Plaintiff, in turn, is owned by non-party LaVae McClinnahan. (Coulter Decl., ¶ 3; McClinnahan Decl., ¶ 1.) Mr. McClinnahan did not greet Defendant or the other Black women at her table at Montauk. (Coulter Decl., ¶ 4.)

6/14/2026: Defendant writes a negative review

about Montauk on the digital platform Resy "because Mr. McClinnahan did not greet [Defendant's] table full of Black women." (Coulter Decl., ¶ 5.) In response, Mr. McClinnahan sends Defendant multiple emails and messages about

her review, banning Defendant from the restaurant and claiming Defendant's review was racist. (Id. ¶ 6.) After Defendant blocked Mr. McClinnihan, he sends "negative and bullying messages" towards individuals who came to Defendant's defense. (Id. ¶ 7.) The following day, Defendant deleted her Resy review after Mr. McClinnahan admitted that he did not greet her when she dined at Montauk. (Id. ¶ 9.)

6/15/2026: Defendant publishes a social media post on Instagram (later shared to Facebook) concerning Plaintiff's restaurant. (Compl., ¶ 6; McClinnahan Decl., ¶ 3.) Defendant's post, a five-minute video, included an overall assessment of the restaurant based on Mr. McClinnahan's conduct in response to Defendant's online review and discussed other negative reports about Mr. McClinnahan that Defendant had discovered online. (Coulter Decl., ¶ 9.) In the post, Defendant stated: "Black women, this is not a safe space for you." (McClinnahan Decl., ¶ 3; Compl., ¶ 7.)

6/17/2026:

Plaintiff, through counsel, sends Defendant a cease and desist

letter

demanding that Defendant remove the social media post. (Coulter Decl., ¶ 11; Compl., ¶ 12.) Defendant refuses and the post remains publicly available as of the filing of this lawsuit. (Id. ¶ 13.)

6/22/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Defamation Per Se

2. False Light

6/30/2026: Defendant files this Special Motion to Strike, which is followed by Plaintiff's Opposition (7/20/2026) and Defendant's Reply (7/23/2026).

TENTATIVE

RULING: SPECIAL MOTION TO STRIKE OF DEFENDANT ALICIA NICOLE COULTER is GRANTED.

I. SPECIAL

MOTION TO STRIKE

Defendant moves for an order striking the entirety of the Complaint pursuant to Code of Civil Procedure section 425.16 (the “anti-SLAPP” statute).

The allegations against Defendant in this action are straightforward: Plaintiff, a restaurant owner, is suing Defendant, a patron of the restaurant, for defamation per se and false light related to Defendant’s negative social media review of her experience at the restaurant and Plaintiff’s subsequent conduct responding to Defendant’s review. (See Compl., generally.)

A.

Defendant’s
Instagram Post Is Protected Speech

The Court

finds that Plaintiff easily overcomes her moving burden on Prong One of the anti-SLAPP analysis. (*Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21 (Simpson), quoting Code Civ. Proc., § 425.16, subd. (b)(1) [the moving defendant must make a “prima facie” showing that the challenged cause of action “aris[es] from” an act by the defendant “in furtherance of the [defendant’s] right of petition or free speech ... in connection with a public issue.”]; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.)

Here, both

causes of action against Defendant arise from Defendant’s social media review of the restaurant, particularly Defendant’s statement: “Black women, this is not a safe space for you.” (Compl., ¶¶ 16, 18, 26-27.) Pursuant to Evidence Code section 356 (the so-called “rule of completeness”), Defendant’s statement cannot be meaningfully considered without its complete context (i.e. the Instagram post as a whole). Defendant submits a copy of the entire Instagram post, a five minute and fifteen second “Reel” video in which Defendant describes her experience at the restaurant, Mr. McClinnahan’s subsequent online “bullying” conduct toward Defendant, and Defendant’s online research into Mr. McClinnahan. (Coulter Decl., ¶ 9, Exh. D.) Defendant declares that her Instagram post was intended “to provide an overall appraisal of [her] experience to warn other potential customers and provide full disclosure before they dined at the Montauk restaurant.” (*Ibid.*) In her declaration, Defendant also explains that she has trademarked the term “Safe Spaces for Black Women” in the context of her book and her online business, a

website and group dedicated to “Safe Spaces for Black Women.” (Coulter Decl., ¶ 2.) Defendant declares that her brand represents “a movement to help Black women feel validated, encouraged, and elevated” and is aimed at educating Black women “as they navigate challenging environments where they are not acknowledged or appreciated. (Ibid.) For the reasons discussed below, the Court finds that this conduct falls within the protected activity enumerated under Code of Civil Procedure section 425.16, subdivisions (e)(3) and (3)(4).[1]

First, it cannot be disputed that Defendant’s restaurant review, published through a public social media post, occurred within a public forum. A “public forum” is traditionally defined as a place open to the public “for the free exchange of ideas.” (Clark v. Burleigh (1992) 4 Cal.4th 474, 482.) “The term ‘public forum’ includes forms of public communication other than those occurring in a physical setting.” (Ampex Corp. v. Cargle (2005) 128 Cal.App.4th 1569, 1576 (Ampex).) For example, this definition includes news and media publications and broadcasts where those outlets are “a vehicle for discussion of public issues” and are “distributed to a large and interested community.” (Annette F. v. Sharon S. (2004) 119 Cal.App.4th 1146, 1161.) Additionally, “[e]lectronic communication media may [] constitute public forums.” (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1006 (Jackson); see Ampex, supra, 128 Cal.App.4th at p. 1576 [same].) “[I]n the cyber context, our Supreme Court has held that public access, not the right to public comment, is the hallmark of a public forum: ‘Web sites accessible to the public ... are “public forums” for purposes of the anti-SLAPP statute.’” (Nygard, Inc. v. Uusi-Kerttula (2008) 159 Cal.App.4th 1027, 1039, citing Barrett v. Rosenthal (2006) 40 Cal.4th 33, 41, fn. 4.)

As Plaintiff admits, Defendant’s negative restaurant review was published to third parties using the Instagram social media platform and was available to members of the public. (Compl., ¶¶ 6-8, 16-17, 26-27; McClinnahan Decl., ¶ 3.) Defendant’s Instagram account is publicly accessible. (Coulter Decl., Exh. D.) Because Defendant’s statements underlying both causes of action were accessible online to members of the public, the Court finds that Defendant’s electronic communication was made in a public forum. (See Jackson, supra, 93

Cal.App.4th at p. 1007 [holding that disparaging remarks made on websites were made in a public forum where the websites were freely accessible to any member of the public]; see *Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1252 [confirming that the defendant's postings on his Facebook page and Instagram account were made in a "public forum" within the meaning of section 425.16, subdivision (e)(3)].)

Second, Defendant

has sufficiently demonstrated that her Instagram post, a review of a local restaurant through the lens of preventing and protecting other Black women from similar experiences in the community, concerns speech related to a matter of public interest. "[A]lthough 'not every Web site post involves a public issue' [citation], consumer information that goes beyond a particular interaction between the parties and implicates matters of public concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute." (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1366 [finding that a critical online review of a dentist's performance was a matter of public interest where the review was not only limited to the reviewer's personal experience but was "part of a public discussion and dissemination of information on issues of public interest."].) Here, Plaintiff submits substantial case authority to suggest that online reviews of local businesses are matters of public interest where the reviews are intended to provide consumers with information and aid consumers in choosing among business vendors. (See e.g. *Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 900 ["Wolk's statements were a warning not to use plaintiffs' services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were directly connected to an issue of public concern."]; see also *Bently Reserve LP v. Papaliolios* (2013) 218 Cal.App.4th 418, 425 [noting that a libel claim based on an online Yelp review for an apartment building "undoubtedly arises from protected activity."].)

Plaintiff's

attempt to recharacterize Defendant's Instagram post as a mere "private grievance about a single business or individual" ignores the broader context and content of Defendant's Instagram post. Defendant's video is over five minutes long. (Coulter Decl., Exh. D.) It is not solely directed at her personal experience with the Plaintiff's restaurant but also includes general background research on Plaintiff's business and provides a warning to other customers, particularly Black women, to avoid Plaintiff's restaurant. (*Ibid.*)

Further, when considered within the broader context of Defendant's social media platform, "Safe Spaces for Black Women," it is readily apparent that Defendant's intent was to educate and empower fellow community members, not simply to publicize a personal grievance. (Coulter Decl., ¶ 2.) For example, unlike the social media reviews in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 628, which focused only on the consumer's harassing complaint, here, Defendant's Instagram post is expressly situated in the broader context of educational and cultural messaging on Defendant's social media platform and was intended to provide members of the community with an appraisal of her experience, not solely to complain, but to inform potential patrons before they choose to dine at Plaintiff's restaurant. (Coulter Decl., ¶ 9.)

Accordingly, the Court finds that Defendant has overcome her burden in establishing that Plaintiff's complaint arises out of speech that is protected by the anti-SLAPP statute. Thus, the burden shifts to Plaintiff to establish a probability that it will prevail on the merits of both causes of action asserted against Defendant. (Simpson, *supra*, 49 Cal.4th at p. 21.)

B.

Montauk

Fails to Demonstrate That It is Likely to Succeed on the Merits of Its Claims Against Defendant

i.

Defamation

Per Se

Plaintiff

fails to demonstrate that its defamation per se claim has even minimal merit. "Defamation constitutes an injury to reputation; the injury may occur by means of libel or slander." (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1242 (*Shively*), citing Civ. Code, § 44.) "A false and unprivileged oral communication attributing to a person specific misdeeds or certain unfavorable characteristics or qualities, or uttering certain other derogatory statements regarding a person, constitutes slander." (*Shively, supra*, 31 Cal.4th at p. 1242, citing Civ. Code, § 46.) To establish a claim for defamation per se, a plaintiff must prove the following elements: (1) that the defendant made one or more statement to a person other than the plaintiff;

(2) that the third party reasonably understood that the statement(s) were about the plaintiff; (3) that the third party reasonably understood the statement(s) to be defamatory on its face; (4) that the statement(s) were false; and (5) that the defendant failed to use reasonable care to determine the truth or falsity of the statements. (CACI, No. 1702.)

Defendant

argues that her statement, "Black women, this is not a safe space for you" is not provably false. (Mot., at p. 10.) "The sine qua non of recovery for defamation ... is the existence of falsehood." (Sanders v. Walsh (2013) 219 Cal.App.4th 855, 862, citation omitted.) "Statements do not imply a provably false factual assertion and thus cannot form the basis of a defamation action if they cannot 'reasonably [be] interpreted as stating actual facts' about an individual." (Ferlauto v. Hamsher (1999) 74 Cal.App.4th 1394, 1400 (Ferlauto), citation omitted.) "Thus, 'rhetorical hyperbole,' 'vigorous epithet[s],' 'lusty and imaginative expression[s] of ... contempt,' and language used 'in a loose, figurative sense' have all been accorded constitutional protection." (Id., citations omitted.) "For example, 'name calling, exaggeration, and ridicule' is frequently found to be nonactionable speech. (Summit Bank v. Rogers (2012) 206 Cal.App.4th 669, 699.)

"The

critical determination of whether an allegedly defamatory statement constitutes fact or opinion is a question of law for the court ... If the court concludes the statement could reasonably be construed as either fact or opinion, the issue should be resolved by a jury." (Ferlauto, supra, 74 Cal.App.4th at p. 1400.) "In drawing the distinction between opinion and fact, California courts apply the totality of the circumstances test to determine whether an allegedly defamatory statement is actionable." (Ibid.) "In applying the totality of the circumstances test, 'editorial context is regarded by the courts as a powerful element in construing as opinion what might otherwise be deemed fact.' In evaluating whether language used is defamatory, courts look 'not so much [to the allegedly libelous statement's] effect when subjected to the critical analysis of a mind trained in the law, but [to] the natural and probable effect upon the mind of the average reader.'" (Id., internal citation omitted.)

Here,

Plaintiff alleges that Defendant's statement is false because it "states or implies that Montauk is unsafe for Black women and that Montauk engages in discriminatory, unsafe, or improper treatment of patrons." (Compl., ¶ 18.) However, considering this statement in the totality of the circumstances, including both the context of Defendant's business "Safe Spaces for Black Women" and the editorial context of the Instagram video review as a whole, it is readily apparent that Defendant was stating her opinion about the social and cultural environment at the restaurant and her personal perception that the restaurant was not a welcoming, comfortable atmosphere for Black women. (Coulter Decl., ¶¶ 2, 9.) Tellingly, Defendant's statement does not identify any particular discriminatory or unlawful act by Plaintiff or any specific safety risk created by Plaintiff. Further, the term "safe space" itself is not capable of measurement—two individuals could reasonably disagree on what constitutes a "safe space" for them and members of their community and that does not undermine or disprove the subjective impressions of the other.

Plaintiff's

focus on the physical safety of the restaurant misconstrues the meaning of Defendant's comment in context. (Opp., at p. 6.) Tellingly, Plaintiff does not dispute Defendant's underlying factual assertions, including that Mr. McClinnahan did not greet Plaintiff's table at the restaurant and that Mr. McClinnahan later contacted Defendant to ban her from the restaurant, calling her "racist," a "joke," a "loser," a "fake," and a "fraud," among other names. (Coulter Decl., ¶¶ 5-8, Exhs. A, B, C.) Defendant's personal evaluation and impressions of these undisputed factual experiences dealing with Mr. McClinnahan at and after her dining experience at Montauk are a quintessential opinion. Indeed, the "natural and probable effect upon the mind of the average reader" who views Defendant's Instagram post as a whole would be to conclude that Defendant was merely sharing her subjective judgment of Plaintiff's restaurant, not asserting verifiable facts. (Ferlauto, *supra*, 74 Cal.App.4th at p. 1400.)

Thus, the Court finds that

Defendant's statement constitutes a non-actionable opinion as a matter of law.

Because

Defendant's statement, when considered in the totality of the circumstances, is not verifiably false, Plaintiff is unable to establish that its defamation claim against Defendant has even minimal merit.

ii.

False

Light

Plaintiff

fails to demonstrate that its false light claim has even minimal merit.

“A

“false light” cause of action is in substance equivalent to a libel claim, and should meet the same requirements of the libel claim, including proof of malice.” (De Havilland v. FX Networks, LLC (2018) 21 Cal.App.5th 845, 865 (De Havilland).) To establish a cause of action for false light, a plaintiff must prove all of the following elements: (1) that the defendant publicly disclosed information or material that showed the plaintiff in a false light; (2) that the false light created by the disclosure would be highly offensive to a reasonable person in the plaintiff’s position; (3) that there is clear and convincing evidence that the defendant knew the disclosure would create a false impression about the plaintiff or acted with reckless disregard for the truth, or that the defendant was negligent in determining the truth of the information or whether a false impression would be created by its disclosure; (4) that the plaintiff was harmed; and (5) that the defendant’s conduct was a substantial factor in causing the plaintiff’s harm. (CACI, No. 1802.) Like a defamation claim, a false light claim rests on the plaintiff’s ability to establish that the defendant’s statements constituted “assertions of fact” which were “actually false or create a false impression about her,” among other elements. (De Havilland, supra, 21 Cal.App.5th at p. 865.)

Here,

Plaintiff’s false light claim is based on the same underlying Instagram post by Defendant discussed above and, like Plaintiff’s defamation claim, also alleges that Defendant’s statement “falsely communicates that Montauk is unsafe for Black women and engages in discriminatory, unsafe, or improper treatment of patrons.” (Compl., ¶¶ 26-27.) As a preliminary matter, because both causes of action are premised on the same underlying statement, Plaintiff’s false light claim is merely duplicative of its defamation per se claim. (Eisenberg v. Alameda Newspapers, Inc. (1999) 74 Cal.App.4th 1359, 1385, fn. 13 [“When a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.”].) Plaintiff effectively concedes this point. (Opp., at p. 12.)

Further,

even assuming that Plaintiff's second cause of action could stand alone as an independent basis for recovery, Plaintiff's false light claim fails for the same reason that the defamation per se claim fails. That is, for the reasons addressed above, Plaintiff cannot demonstrate that the statement underlying its false light claim is an assertion of verifiable fact. Accordingly, Plaintiff is unable to establish that its false light claim against Defendant has even minimal merit.

II. EVIDENTIARY OBJECTIONS

Defendant

objects to the Declaration of Norwood J. Clark (nos. 1-3). The following evidentiary objections are SUSTAINED: 1 and 2 (relevance); and 3 (speculative, lacks foundation).

Defendant

also objects to the Declaration of Lavae McClinnahan (nos. 1-4). The following evidentiary objections are SUSTAINED: 1, 3, and 4 in part (only to the extent that the declaration characterizes Defendant's statement as "defamatory") (improper legal conclusion); and 2 (lack of personal knowledge, relevance). The following objections are OVERRULED: 4 in part (except with respect to the above).

Defendant Alicia Nicole Coulter to serve

notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted on court's website on 7/30/26 at 2 p.m.

[1] These subdivisions provide, in relevant part:

"As used in this section, 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: [...] (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the

constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc., § 425.16, subds. (e)(3), (4).)